**IN THE DISTRICT COURT HELD AT AKIM ODA ON 2ND JUNE, 2025 BEFORE HER WORSHIP ADELINE OWUSUA ASANTE (MS.) SITTING AS THE DISTRICT MAGISTRATE**

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**B1/10/25**

**THE REPUBLIC** **REPUBLIC**

**VRS**

1. **EMMANUEL ASARE** **ACCUSED PERSONS**
2. **ANSAH DANIEL**

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**JUDGMENT**

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**Background**

1st Accused and 2nd Accused persons are before this court on one count each respectively of conspiracy to commit crime to wit stealing contrary to section 23(1) of Act 29/1960 and one count each of stealing contrary to section 124 (1) of Act 29/1960.

The facts as presented by prosecution are that; A1 and A2 is a carpenter and laborer respectively and together with the complainant both are residents of Akim Manso.

On 7th January 2025, the complainant went to Addeikrom galamsey site with his unregistered Sanyo motor bike and parked it at a spot and went to mine. A1 and A2 met at the area and agreed with common purpose to steal the complainant's motor bike.

On 8th January 2025 about 6:30am A1 and A2 stole the motor bike with A1 riding the motor bike and A2 sitting behind as a pillion rider. The complainant closed from work to ride his motor bike only to realize that the motor bike had been stolen and he reported the case to the Manso Police. Whilst investigations were ongoing the

complainant was informed by a witness that A1 and A2 had stolen his motor cycle and were seen with the motor bike between Asuokwa and Adeiso. A1 and A2 on reaching Adeiso made a stop to have a meal. After A1 finished his meal, he informed A2 that he was riding the motorbike to buy something within the area and back for A2 which he agreed to and he left with the motor bike but never returned to Manso.

On 31st January 2025, the complainant assisted by few others arrested A1 and handed him over to the Manso police whilst A2 was later arrested. A1 in his cautioned statements denied the offences. In A2's cautioned statement he admitted the offences and stated that they both agreed and stole the complainant's motorbike and on reaching Adeiso they stopped to eat and after A1 finished eating he rode the motor bike away. A1 and A2 were thereafter charged with the offences.

The accused persons pleaded not guilty to all the charges after it had been read to them in the English language and explained to them in the Twi Language. Our criminal law system presumes everyone including persons against whom criminal charges had been preferred innocent until their guilt had been finally established leading to their conviction. Until that level had been attained after due process of the criminal procedure, it would not accord with jurisprudence to say that a person's guilt had been established or proven. ***See Thompson vs Total Ghana Limited (2009) 5 GMJ pg. 108 @ 111***

Thus, the facts of the prosecution was put in issue and the prosecution assumed the burden to prove the guilt of the accused beyond reasonable doubt.

**Burden of Proof**

Under Article 19(2) (c) of the 1992 Constitution, a person charged with a criminal offence is presumed innocent until proven guilty or has pleaded guilty and it was the duty of the prosecution to prove the essential ingredients of the offence charged

against the accused persons beyond reasonable doubt. The burden of proof was therefore on the prosecution and it was only after a prima facie case had been established by the prosecution that the accused person would be called upon to give his side of the story.

The burden on the accused when called upon to open his defence is to raise a reasonable doubt in the case of the prosecution. *The law is well settled that there is no burden on the accused. If there is any burden at all on the accused, it is not to prove anything, but to raise reasonable doubt. If the accused can raise only such reasonable doubt he must be acquitted.* See ***Commissioner of Police vs Isaac Antwi [1961] GLR 408@412 & Gligah 7 Attiso v The Republic [2010] SCGLR 870***

**Analysis of Evidence**

A1 and A2 have been charged with the offences of conspiracy to commit crime and stealing contrary to sections 23 and 124 (1) of the Criminal Offences Act, 1960, Act 29.

To secure a conviction for the offence of conspiracy to steal, the prosecution is required to establish that there were two or more persons, that they agreed to act together and that the agreement to act together was for a common purpose.

Section 125 of Act 29 defines the offences of stealing as follows; a person steals of the dishonestly appropriates a thing of which he is not the owner.

To establish the offence of stealing prosecution was required to prove the following three (3) elements: (i) Dishonesty (ii) Appropriation (iii) Property belonging to another person.

To prove that the accused persons stole the motor bike, prosecution called two (2) witnesses in support of its case. However the witness PW1 claimed to have informed him that he saw A1 and A2 riding the motorbike was not called to testify `

PW1, Kwame Aboagye testified that on 7th January 2025 he went the Galamsey site at Addeikrom near Manso with his unregistered Sanyo motor bike to mine. He parked the said motor bike at a spot to be ridden back home after work. On 8th January 2025 at about 6.30am he came to where he parked his motor bike only to realize that it had been stolen by a thief (ves). He says he reported the case to the Manso police and whilst investigations were ongoing he was informed that the two (2) accused persons stole his motor bike and were seen between Asamankese and Adeiso highway and he informed the police accordingly.

On 1st February 2025, he arrested A1 with the help of others and handed him over to the police. He also later arrested A2 with the help of the Manso police.

PW2, Detective Chief Inspector Alex Antwi stationed at Akim Manso Police Station testified that on 8th January 2025, a case of stealing was reported by PW1 and referred to him for investigation. On 1st February 2025, A1 and A2 arrested by PW1 to the station with the assistance of some people were re- arrested for cautioning. Without objection from the Accused persons, he tendered the following;

***Exhibit A- Investigation Cautioned Statement of A1 dated 02/02/25***

***Exhibit B- Investigation Cautioned Statement of A2 dated 12/02/25***

***Exhibit C-Charge Cautioned Statement of A1 dated 02/02/25***

***Exhibit D- Charge Cautioned Statement of A2 dated 12/02/25***

A1 in his defence denied the offences and stated on the 8th January 2025 he was in his house as he did not go anywhere and thus was not the one who stole the motorbike. In his investigation cautioned statement admitted and marked as Exhibit A, he stated *"On 8th January 2025 between the hours of 3:00pm to 5:00pm I was asleep".*

However during cross examination of A2 by A1, A1 never refuted the allegation made by A2 that A1 came to his house to escort him to Asamankese to make payment to the seller and at that opportuned that was already in possession of the motorbike.

A2 in his defence denied the offence and stated that while he went to the mining site and returned home upon closing. He says A1 brought a motorbike to his house and asked him to escort him to Asamankese as he had bought the motorbike and had to pay the remaining balance to the owner……

In his investigation caution statement admitted and marked as Exhibit B, he stated that he and A1 planned to steal the motorbike of complainant and they eventually did steal the bike.

Section 80 of the Evidence Act, 1975, (NRCD) 323 provides that matters which may be relevant in considering the credibility of a witness include a statement or conduct which is consistent/inconsistent with the testimony of the witness at the trial. It is settled law that a person whose evidence on oath was contradictory of a previous statement made by him, whether sworn or unsworn, was not worthy of credit. See ***Gyabaah vs The Republic [1984-86] GLR 461-475***

The testimony of A2 during trial, it is noted is inconsistent with his earlier statements, (Exhibits B & D) given when he was arrested.

It is trite criminal law that a confession made by an accused person which is admitted in evidence is evidence against him. It is however not evidence against any other person implicated in it unless it is made in the presence if that person and he acknowledges the incriminating parts so as to make them, in effect, his own. This is in contrast with the evidence on oath of a co-accused in a joint trial which is evidence for all purposes including the purpose of being evidence against the accused.

The incriminating confession of A2 to rope in A1 in this case which was before the arraignment of both A1 and A2 will not lie as it was not evidence given while they

were jointly charged when A2 in his defence made the incriminating statement. ***See Francis Yirenkyi vs The Republic (2016) Criminal Appeal J3/7/2015.*** A2 having admitted by way of confession voluntarily to the commission of the offence is found guilty of the offences preferred against him. A1 from the evidence adduced has also not been able to raise a reasonable doubt in the mind of this court as to his innocence.

**Conclusion**

The facts in the instant suit have proved that A1 and A2 did agree with a common purpose to dishonestly appropriate the motorbike of complainant and this court hereby finds A1 and A2 guilty of the offence of conspiracy to commit crime to wit stealing and stealing contrary to section 23 and 124 (1) of Act 29/1960 and convicts A1 and A2 accordingly.

Having considered that the A1 and A2 are first time offenders, their ages and their plea in mitigation, A1 and A2 are hereby sentenced to six (6) months imprisonment each on counts 1 and two respectively and the sentencing will run concurrently.

**(SGD)**

**ADELINE OWUSUA ASANTE (MS.)**

**(MAGISTRATE)**